

The Court Fees (Bihar Amendment) Act, 2001

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State of Bihar - Act

The Court Fees (Bihar Amendment) Act, 2001

BIHAR

India

The Court Fees (Bihar Amendment) Act, 2001

Act 9 of 2001

Published on 1 January 2001

Commenced on 1 January 2001

[This is the version of this document from 1 January 2001.]

[Note: The original publication document is not available and this content could not be verified.]

The Court Fees (Bihar Amendment) Act, 2001

Bihar Act

9 of 2001

Published in the Bihar Gazette (Extra ordinary) dated, 5.11.2001.

An Act to Amend the Court Fees Act, 1870 (As Amended by Bihar Amendment Act, 1995) in its application to the State of Bihar.

Be it enacted by the Legislature of the State of Bihar in the fifty second year of the Republic of India as follows :-

1.

Short title, extent and commencement.

(1)

This Act, may be called the Court Fees (Bihar Amendment) Act, 2001.

(2)

It shall extend to the whole of the State of Bihar.

(3)

It shall come into force at once.

2.

Amendment of item No. 2,3 and 4 of Schedule I appended to Act VII, 1870 (as amended by Bihar Amendment Act, 1996).

- In the Court fees Act, 1870 (as amended by Bihar Amendment Act, 1995) for the items 2, 3 and 4 of Schedule I the following shall be substituted namely :-

(1)

Plaint in a suit for possession under the Specific Relief Act, 1963, Section 6.

A fee of half of the prescribed fee in the foregoing Scale in item 1.

(2)

Application for review of judgement if presented on or after the ninetieth day from the date of the decree.

The fee leviable on the plaint or memorandum of appeal as item 1.

(3)

Application for review of judgement, if presented before the ninetieth day from the date of the decree.

One half of the fee leviable on the plaint or memorandum of appeal as item 1.

3.

Repeal and savings.

(1)

The Court fees (Bihar Amendment) Ordinance, 2001 (Bihar Ordinance 4, 2001) is hereby repealed.

(2)

Notwithstanding such repeal anything done or any action taken in exercise of any power conferred by, or under the said Ordinance shall be deemed to have been done on taken in exercise of the powers conferred by or under this Act, as if this Act, was in force on the day on which such thing was done or action taken.

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